International Law
LAWS2000 & LAWS8015

WEEK 10: COLLECTIVE SECURITY /MAINTENANCE OF INTERNATIONAL PEACE AND SECURITY

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THIS WEEK

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Collective security /maintenance of international Peace and security

Part A

- The United Nations system
- UN Security Council non-forcible measures
- The role of the UN Security Council and use of force (collective security)

Part B

- UN peacekeeping and peace operations
- Other relevant UN organs in the maintenance of int. peace and security

Part C

- The Future of Collective Security (Security Council Report podcast)

Week 10

Part A

COLLECTIVE SECURITY



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SYDNEY·AUSTRALIA

UN Photo: New Agreement Between Egypt and Israel: New Tasks Assigned to UNEF

Role of the United Nations

- Central institutional regime of international relations
- Formally established to prevent instability and unchecked aggression in inter-state affairs (which had featured prominently in the first half of the 20th century)
- Primary aim of the organisation was to be promote friendly international relations and the maintenance of international peace and security
- Influential in the development of modern international law, and its enforcement
- Structures influenced by the political climate in which it was created, but role continues to evolve



The UN Charter – Purposes

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CHAPTER I: PURPOSES AND PRINCIPLES

Article 1

The Purposes of the United Nations are:

1. To maintain international peace and security, and to that end: to take effective collective measures for the prevention and removal of threats to the peace, and for the suppression of acts of aggression or other breaches of the peace, and to bring about by peaceful means, and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of the peace;
2. To develop friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples, and to take other appropriate measures to strengthen universal peace;
3. To achieve international co-operation in solving international problems of an economic, social, cultural, or humanitarian character, and in promoting and encouraging respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language, or religion; and
4. To be a centre for harmonizing the actions of nations in the attainment of these common ends.

The United Nations System

PRINCIPAL ORGANS

GENERAL ASSEMBLY

Subsidiary Organs
- Disarmament Commission
- Human Rights Council
- International Law Commission
- Joint Inspection Unit (JIU)
- Main committees
- Standing committees and ad hoc bodies

Funds and Programmes[1]
UNDP United Nations Development Programme
- **UNCDF** United Nations Capital Development Fund
- **UNV** United Nations Volunteers

UNEP[8] United Nations Environment Programme
UNFPA United Nations Population Fund
UN-HABITAT[8] United Nations Human Settlements Programme
UNICEF United Nations Children's Fund
WFP World Food Programme (UN/FAO)

Research and Training
UNIDIR United Nations Institute for Disarmament Research
UNITAR United Nations Institute for Training and Research
UNSSC United Nations System Staff College
UNU United Nations University

Other Entities
ITC International Trade Centre (UN/WTO)
UNCTAD[1,8] United Nations Conference on Trade and Development
UNHCR[1] Office of the United Nations High Commissioner for Refugees
UNOPS[1] United Nations Office for Project Services
UNRWA[1] United Nations Relief and Works Agency for Palestine Refugees in the Near East
UN-WOMEN[1] United Nations Entity for Gender Equality and the Empowerment of Women

Related Organizations
CTBTO Preparatory Commission Preparatory Commission for the Comprehensive Nuclear-Test-Ban Treaty Organization
IAEA[1,3] International Atomic Energy Agency
ICC International Criminal Court
IOM[1] International Organization for Migration
ISA International Seabed Authority
ITLOS International Tribunal for the Law of the Sea
OPCW[3] Organization for the Prohibition of Chemical Weapons
WTO[1,4] World Trade Organization

Peacebuilding Commission

HLPF
High-level Political Forum on Sustainable Development

SECURITY COUNCIL

Subsidiary Organs
- Counter-Terrorism Committee
- International Residual Mechanism for Criminal Tribunals
- Military Staff Committee
- Peacekeeping operations and political missions
- Sanctions committees (ad hoc)
- Standing committees and ad hoc bodies

ECONOMIC AND SOCIAL COUNCIL

Functional Commissions
- Crime Prevention and Criminal Justice
- Narcotic Drugs
- Population and Development
- Science and Technology for Development
- Social Development
- Statistics
- Status of Women
- United Nations Forum on Forests

Regional Commissions[8]
ECA Economic Commission for Africa
ECE Economic Commission for Europe
ECLAC Economic Commission for Latin America and the Caribbean
ESCAP Economic and Social Commission for Asia and the Pacific
ESCWA Economic and Social Commission for Western Asia

Other Bodies[10]
- Committee for Development Policy
- Committee of Experts on Public Administration
- Committee on Non-Governmental Organizations
- Permanent Forum on Indigenous Issues

UNAIDS Joint United Nations Programme on HIV/AIDS
UNGEGN United Nations Group of Experts on Geographical Names
UNGGIM Committee of Experts on Global Geospatial Information Management

Research and Training
UNICRI United Nations Interregional Crime and Justice Research Institute
UNRISD United Nations Research Institute for Social Development

Specialized Agencies[1,5]
FAO Food and Agriculture Organization of the United Nations
ICAO International Civil Aviation Organization
IFAD International Fund for Agricultural Development
ILO International Labour Organization
IMF International Monetary Fund
IMO International Maritime Organization
ITU International Telecommunication Union
UNESCO United Nations Educational, Scientific and Cultural Organization
UNIDO United Nations Industrial Development Organization
UNWTO World Tourism Organization
UPU Universal Postal Union
WHO World Health Organization
WIPO World Intellectual Property Organization
WMO World Meteorological Organization
WORLD BANK GROUP[7]
- **IBRD** International Bank for Reconstruction and Development
- **IDA** International Development Association
- **IFC** International Finance Corporation

SECRETARIAT

Departments and Offices[9]
EOSG Executive Office of the Secretary-General
DCO Development Coordination Office
DESA Department of Economic and Social Affairs
DGACM Department for General Assembly and Conference Management
DGC Department of Global Communications
DMSPC Department of Management Strategy, Policy and Compliance
DOS Department of Operational Support
DPO Department of Peace Operations
DPPA Department of Political and Peacebuilding Affairs
DSS Department of Safety and Security
OCHA Office for the Coordination of Humanitarian Affairs
OCT Office of Counter-Terrorism
ODA Office for Disarmament Affairs
OHCHR Office of the United Nations High Commissioner for Human Rights
OIOS Office of Internal Oversight Services
OLA Office of Legal Affairs
OOSA Office for Outer Space Affairs
OSAA Office of the Special Adviser on Africa
SRSG/CAAC Office of the Special Representative of the Secretary-General for Children and Armed Conflict
SRSG/SVC Office of the Special Representative of the Secretary-General on Sexual Violence in Conflict
SRSG/VAC Office of the Special Representative of the Secretary-General on Violence Against Children
UNDRR United Nations Office for Disaster Risk Reduction
UNODC[1] United Nations Office on Drugs and Crime
UNOG United Nations Office at Geneva
UN-OHRLLS Office of the High Representative for the Least Developed Countries, Landlocked Developing Countries and Small Island Developing States
UNON United Nations Office at Nairobi
UNOP[2] United Nations Office for Partnerships
UNOV United Nations Office at Vienna

INTERNATIONAL COURT OF JUSTICE

TRUSTEESHIP COUNCIL[6]

Notes:
1 Member of the United Nations System Chief Executives Board for Coordination (CEB).
2 The United Nations Office for Partnerships is the focal point vis-a-vis the United Nations Foundation, Inc.
3 IAEA and OPCW report to the Security Council and the General Assembly (GA).
4 WTO has no reporting obligation to the GA, but contributes on an ad hoc basis to GA and Economic and Social Council (ECOSOC) work on, inter alia, finance and development issues.
5 Specialized agencies are autonomous organizations whose work is coordinated through ECOSOC (intergovernmental level) and CEB (inter-secretariat level).
6 The Trusteeship Council suspended operations on 1 November 1994, as Palau, the last United Nations Trust Territory, became independent on 1 October 1994.
7 International Centre for Settlement of Investment Disputes (ICSID) and Multilateral Investment Guarantee Agency (MIGA) are not specialized agencies in accordance with Articles 57 and 63 of the Charter, but are part of the World Bank Group.
8 The secretariats of these organs are part of the United Nations Secretariat.
9 The Secretariat also includes the following offices: the Ethics Office, United Nations Ombudsman and Mediation Services, and the Office of Administration of Justice.
10 For a complete list of ECOSOC Subsidiary Bodies see un.org/ecosoc.

This Chart is a reflection of the functional organization of the United Nations System and for informational purposes only. It does not include all offices or entities of the United Nations System.

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Collective Security

- ✓ Creation of a system where war and aggression are the concern of all states, not a private dispute between states: war against one is war against all
- ✓ Both the League of Nations and the United Nations were founded on the principle of collective security (other example: North Atlantic Treaty Organisation, NATO)
- ✓ Intended to provide machinery for joint action => collective response to threats and breaches of peace
- ✓ The UN system centralises the permissible use of force to one body: the Security Council



UN Security Council

- ✓ Membership consists of 15 UN member states (Art. 23):
  - 5 permanent members with veto powers (P-5): US, China, Russia, UK and France. (Veto= Art. 27 (3))
  - 10 non-permanent members elected for a two-year term (5 elected each year by the UN General Assembly) divided along regional lines: 3 reserved for Africa, 2 for Asia, 2 for Latin America and the Caribbean, 2 for Western Europe and Other States, 1 for Eastern Europe

Current elected members: Bahrain, Colombia, Democratic Republic of the Congo, Denmark, Greece, Latvia, Liberia, Pakistan, Panama ,Somalia



The UN Security Council

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UN Charter, Article 24

(1) In order to ensure prompt and effective action by the United Nations, its Members confer on the Security Council **primary responsibility for the maintenance of international peace and security**, and agree that in carrying out its duties under this responsibility the Security Council acts on their behalf.

(2) In discharging these duties the Security Council shall act in accordance with the Purposes and Principles of the United Nations. The specific powers granted to the Security Council for the discharge of these duties are laid down in Chapters VI, VII, VIII, and XII.

Chapter VII of the UN Charter lays down the UN Security Council's powers with respect to **threats to peace, breaches of the peace, and acts of aggression**

UN Security Council

Decisions legally binding upon all members (Art. 25)

> "The Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the present Charter."

To be read together with Art. 103 UN Charter

"In the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail".

!

Tools for Maintaining Peace and Security

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Peaceful settlement

Charter Chap. 6

Art. 33

Good Office, inquiry mediation conciliation, adjudication (ICJ)/arbitrations (PCA)

Col. Security no use of force

Charter Chap. 7

Art. 41

Sanctions, PKO no use of force

Col. Security use of force

Charter Chap. 7

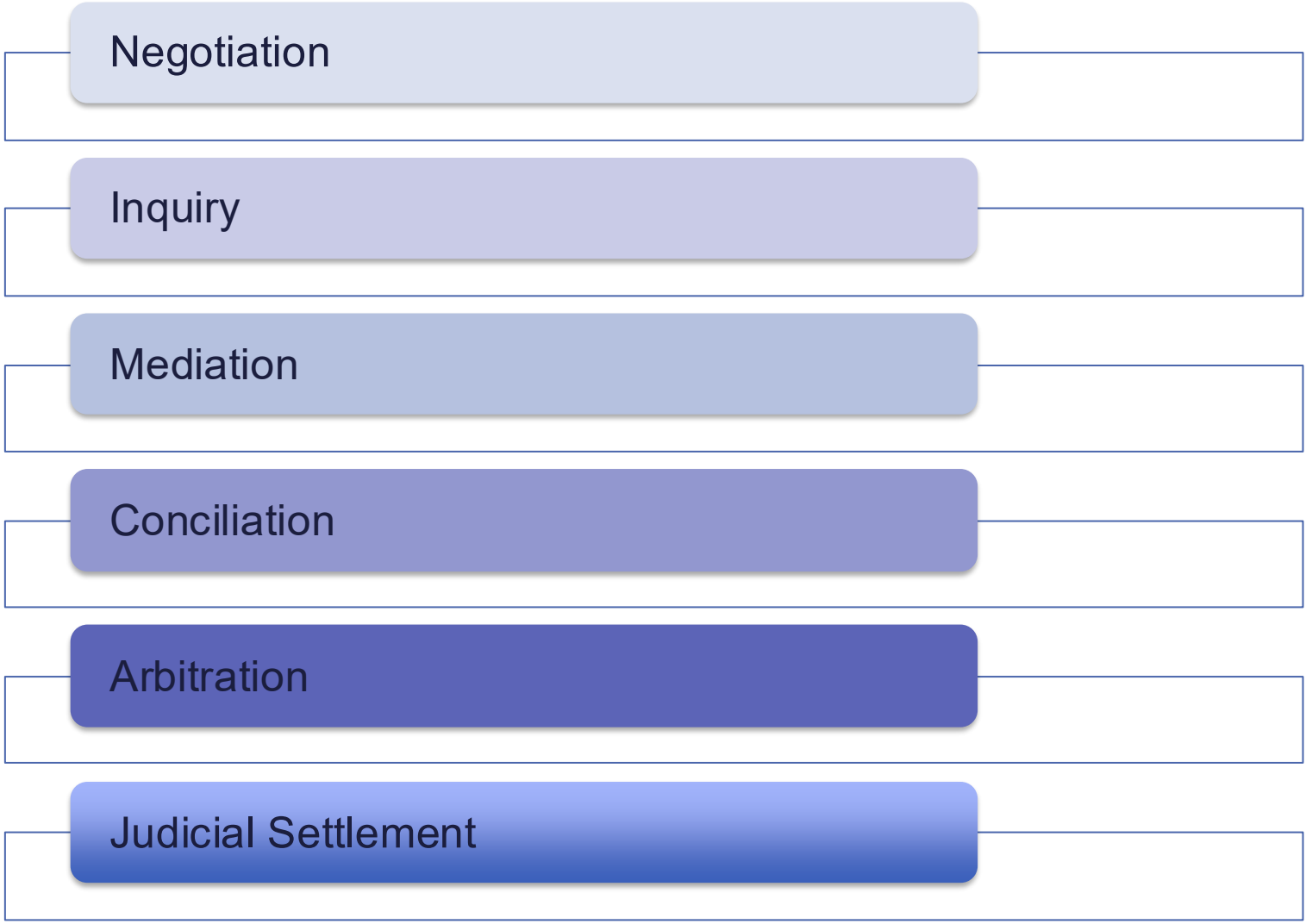
Art. 42

SC authorize member states, regional org. or PKO

UN Security Council

Role in the peaceful settlement of disputes (Chapter VI) Art. 33

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United Nations Charter, Chapter VI: Pacific Settlement of Disputes

Article 33

1. The parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security, shall, first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice.

2. The Security Council shall, when it deems necessary, call upon the parties to settle their dispute by such means.

UN Security Council

ROLE IN THE PEACEFUL SETTLEMENT OF DISPUTES (CHAPTER VI) ART. 33

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- ✓ UNSC can investigate any dispute, or any situation which might lead to international friction or give rise to a dispute to see if it is a danger to int. peace and security (Art. 34)
- ✓ Any member of the United Nations may bring any dispute, or any situation of the nature referred to in Article 34, to the attention of the Security Council (or of the General Assembly). (Art. 35)
- ✓ The UNSC can recommend appropriate procedures or methods of adjustment. (Art. 36 (1))
- ✓ The UNSC should consider that legal disputes should as a general rule be referred by the parties to the ICJ. (Art. 36 (3))
- ✓ The parties who fail to settle a dispute by the means indicated in Art. 33, shall refer it to the UNSC. (Art. 37 (1))

UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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Article 39

SC determine the existence of any threat to the peace, breach of the peace, or act of aggression … decide what measures shall be taken in accordance with Arts. 41 and 42, to maintain or restore international peace and security.

Article 41

SC may decide what measures not involving the use of armed force… may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations.

Article 42

Should the SC consider that measures provided for in Article 41 would be inadequate or have proved to be inadequate, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security … include demonstrations, blockade, and other operations by air, sea, or land forces of UN

UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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UN Charter, Article 39

The Security Council shall determine the existence of any threat to the peace, breach of the peace, or act of aggression and shall **make recommendations**, or **decide** what measures shall be taken in accordance with Articles 41 and 42, to maintain or restore international peace and security.

Security Council's power to determine the situation: evolving interpretation practice, e.g. proliferation of nuclear, chemical or biological weapons; internal armed conflicts; terrorism; serious human rights or IHL violations; 2014 Ebola outbreak in Africa etc.

UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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UN Charter, Article 40

In order to prevent an aggravation of the situation, the Security Council may, before making the recommendations or deciding upon the measures provided for in Article 39, call upon the parties concerned to comply with such provisional measures as it deems necessary or desirable. Such provisional measures shall be without prejudice to the rights, claims, or position of the parties concerned. The Security Council shall duly take account of failure to comply with such provisional measures.

UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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- ➔ Non-exhaustive list
- ➔ provides SC with a wide scope of non-military coercive measures, including economic and diplomatic measures (provision is not exhaustive)
- ➔ can include economic sanctions and arms embargoes, but also establishment of ad hoc international criminal tribunals (such as ICTY & ICTR)

Article 42

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UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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Sanctions

Peace Enforcement
e.g., Angola, CAR, DRC, Sudan

Counter-terrorism
e.g., Al-Qaida/ISIL, Libya, Lebanon

Non-proliferation
e.g., DPRK, Iran, Iraq

R2P
e.g. Libya

https://unsanctionsapp.com/

The UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

Comprehensive sanctions

Financial, trade and other economic measures against states (e.g., Iraq during the 1990s, and North Korea until today (because of nuclear proliferation))

⇒Controversy surrounding impact on populations (e.g., Iraq 1990s)

Targeted/Smart sanctions

⇒In response to impact of comprehensive sanctions, trend towards more targeted or 'smart' sanctions, such as focus on trade of specific commodities (e.g., conflict diamonds), or sanctions against particular groups, corporations or individuals (e.g., travels bans and asset freezes)

⇒Details often determined by specific SC sanction committees

⇒Proper implementation ultimately depends on how states interpret and apply the SC-mandated sanctions regime

The UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

Democratic People's Republic of Korea (DPRK)

S/RES/2397 (2017)

(Non-exhaustive list)

- Reduced the caps on the supply, sale or transfer to the DPRK of all refined petroleum products.
- Introduced a ban on DPRK's export of food and agricultural products, machinery, electrical equipment, earth and stone including magnesite and magnesia, wood and vessels.
- Introduced a ban on the supply, sale or transfer to the DPRK of all industrial machinery, transportation vehicles, iron, steel and other metals with the exception of spare parts to maintain DPRK commercial civilian passenger aircraft currently in use.
- Strengthened vessel-related provisions by prohibiting the provision of insurance or re-insurance services to and requiring Member States to de-register any vessels involved in illicit activities.

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UNITED NATIONS SECURITY COUNCIL

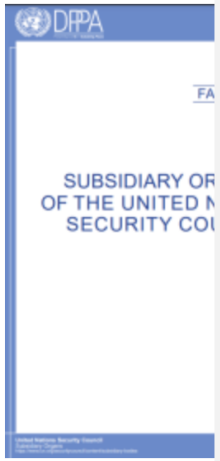
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- ISIL (Da'esh) & Al-Qaida Sanctions Committee
- 1518 Sanctions Committee (Iraq)
- The Democratic Republic of Congo Sanctions Committee
- The Sudan Sanctions Committee
- 1636 Sanctions Committee
- 1718 Sanctions Committee (DPRK)
- Libya Sanctions Committee
- 1988 Sanctions Committee
- Guinea-Bissau Sanctions Committee
- The 2127 sanctions Committee concerning CAR
- 2140 Sanctions Committee (Yemen)
- South Sudan Sanctions Committee
- 2653 Sanctions Committee (Haiti)
- Narrative Summaries of Reasons for Listing
- Ombudsperson to the ISIL (Da'esh) and Al-Qaida Sanctions Committee
- Focal Point for De-listing
- Pool of Experts
- Terminated Sanctions Regimes

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Sanctions



intain or restore international peace and security under Chapter VII of the United Nations
e 41, encompass a broad range of enforcement options that do not involve the use of armed
s established 31 sanctions regimes, in Southern Rhodesia, South Africa, the Former
, Eritrea/Ethiopia, Rwanda, Sierra Leone, Côte d'Ivoire, Iran, Somalia/Eritrea, ISIL (Da'esh)
c of the Congo, Sudan, Lebanon, Democratic People's Republic of Korea, Libya (2), the
public, Yemen, South Sudan and Mali.

mber of different forms, in pursuit of a variety of goals. The measures have ranged from
ions to more targeted measures such as arms embargoes, travel bans, and financial or
cil has applied sanctions to support peaceful transitions, deter non-constitutional changes,
and promote non-proliferation.

n a vacuum. The measures are most effective at maintaining or restoring international
f a comprehensive strategy encompassing peacekeeping, peacebuilding and peacemaking.
are punitive, many regimes are designed to support governments and regions working
d Guinea-Bissau sanctions regimes all exemplify this approach.

Today, there are 15 ongo
administered by a sanct
work of 12 of the 15 sar

al settlement of conflicts, nuclear non-proliferation, and counter-terrorism. Each regime is
the Security Council. There are 11 monitoring groups, teams and panels that support the

The Council applies sanctions with ever-increasing cognisance of the rights of those targeted. In the 2005 World Summit declaration, the General Assembly called on the Security Council, with the support of the Secretary-General, to ensure that fair and clear procedures are in place for the imposition and lifting of sanctions measures. The establishment of a focal point for de-listing, and the Office of the Ombudsperson to the ISIL (Da'esh) & Al-Qaida Sanctions Committee are examples of this approach in practice.

See: https://www.un.org/securitycouncil/sanctions/information

The UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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Source: ICTY

UN Security Council, ad hoc tribunals and relation with ICC

Ad hoc tribunals

Try people responsible for serious crimes under international humanitarian law

➔ International Criminal Tribunal for the former Yugoslavia (ICTY)
➔ International Criminal Tribunal for Rwanda (ICTR)

The International Criminal Court is not part of the UN, but the UNSC can refer situations to the ICC Prosecutor in accordance with Chapter VII (e.g., Darfur).

Referral to International Criminal Court

Article 13(b), Rome Statute

The Court may exercise its jurisdiction with respect to a crime referred to in article 5 in accordance with the provisions of this Statute if …

(b) A situation in which one or more of such crimes appears to have been committed is referred to the Prosecutor by the Security Council acting under Chapter VII of the Charter of the United Nations …

E.g. Darfur 2005

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Role in response to a threat to peace and security (Chapter VII) Collective Security

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- ➔ Exception to prohibition on use of force at 2(4) UN Charter
- ➔ Last resort
- ➔ Reliance on member states

Article 42

Should the SC consider that **measures provided for in Article 41 would be inadequate or have proved to be inadequate**, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security … include demonstrations, blockade, and other operations by air, sea, or land forces of members of the United Nations.

UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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Art. 43 UN Charter: never implemented

➔ UNSC may authorise coalitions of states

Example

Operation Desert Storm in response to Iraq's illegal occupation of Kuwait => SC authorised in 1990 an ad hoc coalition of states led by the US to use 'all necessary measures' to restore Kuwait's sovereignty (UNSC Res. 678).



UNSC Authorisation to Use of Force and Regional Organisations

Chapter VIII, UN Charter

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UNSC may also authorise regional organisations to enforce its decisions (Art. 53 UN Charter)

- ✓ **Regional Economic Community of West African States** (ECOWAS) => Liberia, Sierra Leone, Côte d'Ivoire
- ✓ **Common Wealth of Independent States (CIS)** => Tajikistan
- ✓ **African Union (AU)** => Darfur
- ✓ **North Atlantic Treaty Organization (NATO)** => Libya
- ✓ **Organization of American States (OAS)** => Haiti
- ✓ **Organization for Security and Co-operation in Europe (OSCE)** => Georgia
- ✓ **EU** => DRC



Resolution 678 (1990)

of 29 November 1990

The Security Council,

Recalling and reaffirming its resolutions 660 (1990) of 2 August 1990, 661 (1990) of 6 August 1990, 662 (1990) of 9 August 1990, 664 (1990) of 18 August 1990, 665 (1990) of 25 August 1990, 666 (1990) of 13 September 1990, 667 (1990) of 16 September 1990, 669 (1990) of 24 September 1990, 670 (1990) of 25 September 1990, 674 (1990) of 29 October 1990 and 677 (1990) of 28 November 1990,

Noting that, despite all efforts by the United Nations, Iraq refuses to comply with its obligation to implement resolution 660 (1990) and the above-mentioned subsequent relevant resolutions, in flagrant contempt of the Security Council,

Mindful of its duties and responsibilities under the Charter of the United Nations for the maintenance and preservation of international peace and security,

Determined to secure full compliance with its decisions,

Acting under Chapter VII of the Charter,

1. *Demands* that Iraq comply fully with resolution 660 (1990) and all subsequent relevant resolutions, and decides, while maintaining all its decisions, to allow Iraq one final opportunity, as a pause of goodwill, to do so;

2. *Authorizes* Member States co-operating with the Government of Kuwait, unless Iraq on or before 15 January 1991 fully implements, as set forth in paragraph 1 above, the above-mentioned resolutions, to use all necessary means to uphold and implement resolution 660 (1990) and all subsequent relevant resolutions and to restore international peace and security in the area;

3. *Requests* all States to provide appropriate support for the actions undertaken in pursuance of paragraph 2 above;

4. *Requests* the States concerned to keep the Security Council regularly informed on the progress of actions undertaken pursuant to paragraphs 2 and 3 above;

5. *Decides* to remain seized of the matter.

Adopted at the 2963rd meeting by 12 votes to 2 (Cuba and Yemen), with 1 abstention (China).

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UN Security Council

Role in response to a threat to peace and security (Chapter VII) Collective Security

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Internal conflict and facilitation of humanitarian aid

- ✓ Somalia 1992 UN Res 794

  "Acting under Chapter VII of the Charter of the United Nations, authorizes the Secretary General and Member States cooperating to implement the offer referred to in paragraph 8 above to use all necessary means to establish as soon as possible a secure environment for humanitarian relief operations in Somalia" para 10.
- ✓ Haiti 1994 UN Res 940
- ✓ Albania 1997 UN Res 1101

Protection of civilians Libya 2011 UN Res 1973, Côte d'Ivoire 2011 UN Res 1975.

Enforcement of no-fly zones and embargos: Libya 2011 UN Res 1973

Repression of piracy: Somalia 2008 UN Res 1816.

*This examples are not exhaustive

Revived or implied authorisation?

The 2003 invasion of Iraq



Special Commission Team Supervises Destruction of Iraq's Chemical Weapon Arsenal, UN Photo

➔ Member states invoking claims to 'revive' an earlier authorisation, or 'implying' such authorisation from UNSC resolutions (without it explicitly authorised)

➔ Most prominent example is Operation Iraqi Freedom in March 2003 => coalition of states led by US and UK (incl. Australia) invaded Iraq with the stated aim of eliminating weapons of mass destruction and stopping Saddam Hussein from supporting terrorism (e.g. Res 1441 threatened 'serious consequences' against Iraq)

Letter dated 20 March 2003 from the Permanent Representative of the United States of America to the United Nations addressed to the President of the Security Council

Coalition forces have commenced military operations in Iraq. These operations are necessary in view of Iraq's continued material breaches of its disarmament obligations under relevant Security Council resolutions, including resolution 1441 (2002). The operations are substantial and will secure compliance with those obligations. In carrying out these operations, our forces will take all reasonable precautions to avoid civilian casualties.

The actions being taken are authorized under existing Council resolutions, including its resolutions 678 (1990) and 687 (1991). Resolution 687 (1991) imposed a series of obligations on Iraq, including, most importantly, extensive disarmament obligations, that were conditions of the ceasefire established under it. It has been long recognized and understood that a material breach of these obligations removes the basis of the ceasefire and revives the authority to use force under resolution 678 (1990). This has been the basis for coalition use of force in the past and has been accepted by the Council, as evidenced, for example, by the Secretary-General's public announcement in January 1993 following Iraq's material breach of resolution 687 (1991) that coalition forces had received a mandate from the Council to use force according to resolution 678 (1990).

Iraq continues to be in material breach of its disarmament obligations under resolution 687 (1991), as the Council affirmed in its resolution 1441 (2002). Acting under the authority of Chapter VII of the Charter of the United Nations, the Council unanimously decided that Iraq has been and remained in material breach of its obligations and recalled its repeated warnings to Iraq that it will face serious consequences as a result of its continued violations of its obligations. The resolution then provided Iraq a "final opportunity" to comply, but stated specifically that violations by Iraq of its obligations under resolution 1441 (2002) to present a currently accurate, full and complete declaration of all aspects of its weapons of mass destruction programmes and to comply with and cooperate fully in the implementation of the resolution would constitute a further material breach.

The Government of Iraq decided not to avail itself of its final opportunity under resolution 1441 (2002) …

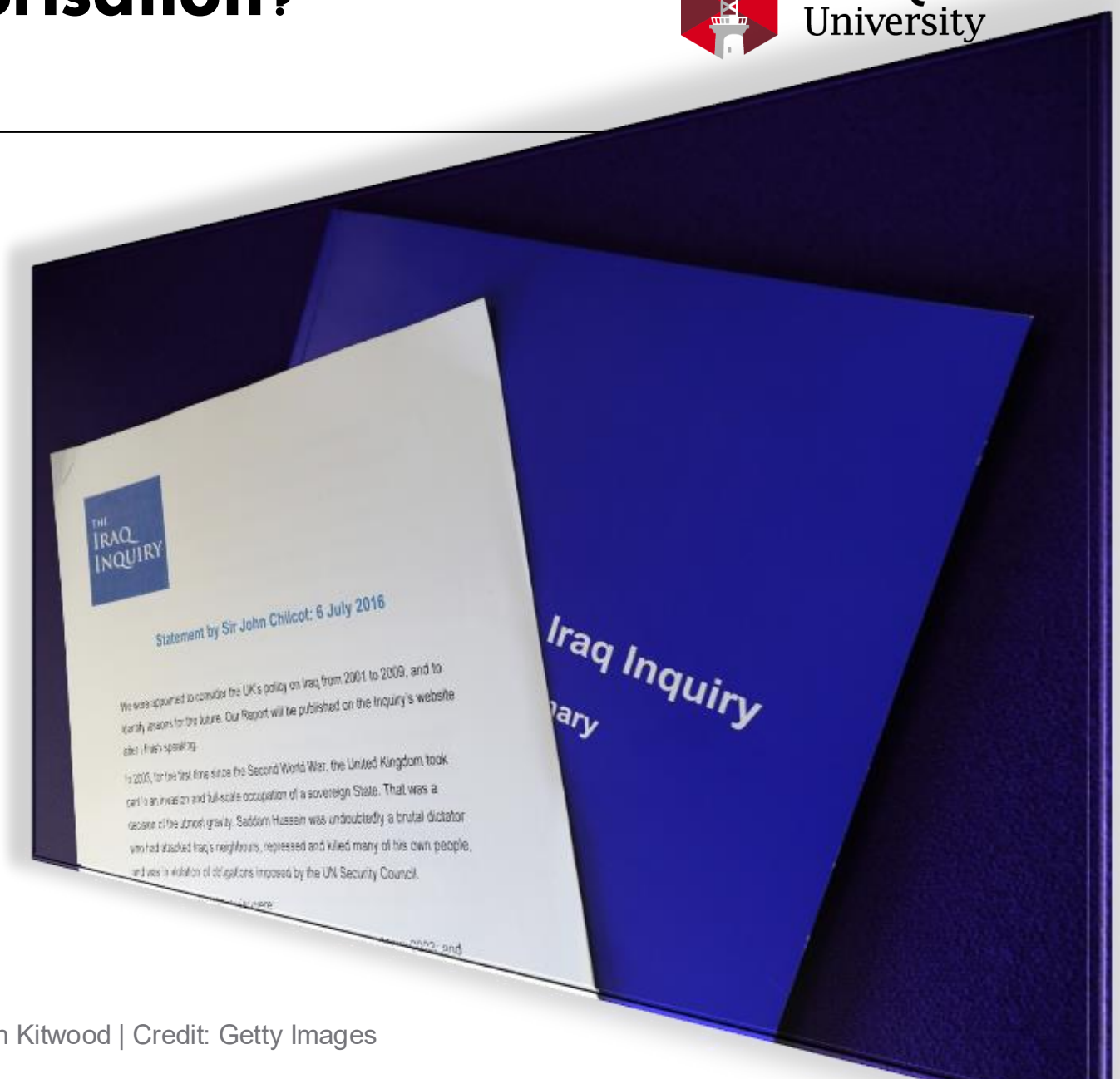
Revived or implied authorisation?

The 2003 invasion of Iraq

Participating states claimed that broad language from SC resolution authorised use of force – an understanding rejected by most other SC and UN member states, as well as majority of legal scholars

Chilcot inquiry in the UK

20 years of Iraq invasion. Found that not all peaceful options had been exhausted before going to war. So far no inquiry in Australia (despite ongoing calls; also discussions around more involvement of parliament in war decisions)



Dan Kitwood | Credit: Getty Images

Week 10

Part B

PEACEKEEPING AND OTHER UN ORGANS WITH FUNCTIONS FOR INT. PEACE AND SECURITY

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UN Photo: New Agreement Between Egypt and Israel: New Tasks Assigned to UNEF

UN peacekeeping or peace operations

- Not explicitly mentioned in the UN Charter
- Primarily created to keep the peace, not to enforce it
- Unlike authorisation to one state or group of states these are UN operations



UN peacekeeping or peace operations

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Traditional principles

- consent of the parties
- impartiality
- non-use of force except in self-defence

⇒ **Gradually evolving**
e.g. UN as transitional administration (Kosovo and Timor Leste)

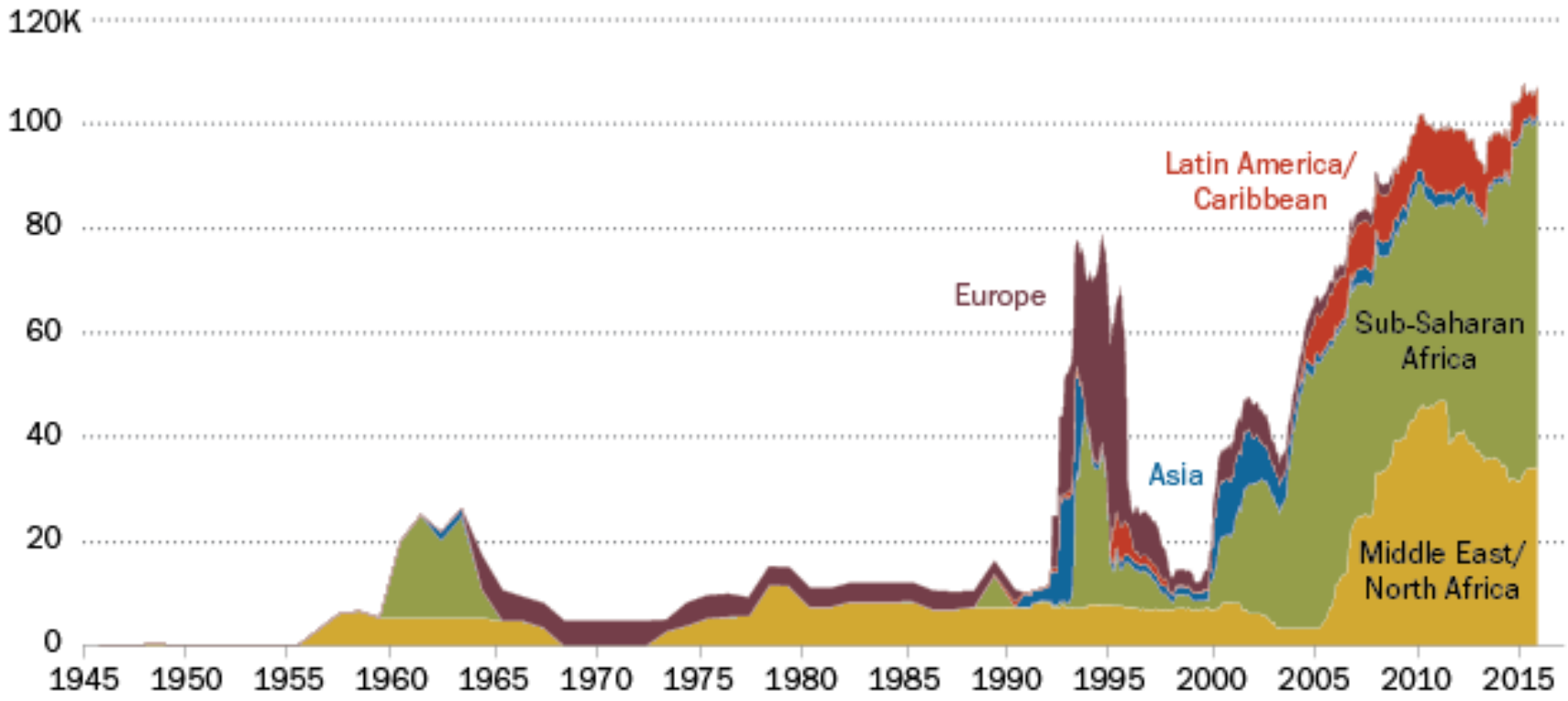
⇒ **Changing attitude to the use of force**
e.g. authorisation of some mission to use force to carry out mandate, such as missions in DRC (incl. targeted offensive operations) and Mali



UNFICYP

The rise of UN peacekeeping forces

Total number of UN peacekeeping troops, military experts and police deployed to ...



Note: Does not include civilian personnel or volunteers. Middle East/North Africa region includes missions to Iraq, Israel, Lebanon, Sudan, Syria and Western Sahara. All other missions categorized according to UN regional divisions. Data from 1945-1990 show midyear values; data from 1991-2015 are monthly.
Source: United Nations Department of Peacekeeping Operations; International Peace Institute; Stimson Center

PEW RESEARCH CENTER

Current UN Peacekeeping Missions

MINURSO, Western Sahara

MINUSCA, Central African Republic

MONUSCO, D.R. of the Congo

UNDOF, Golan

UNFICYP, Cyprus

UNIFIL, Lebanon

UNISFA, Abyei

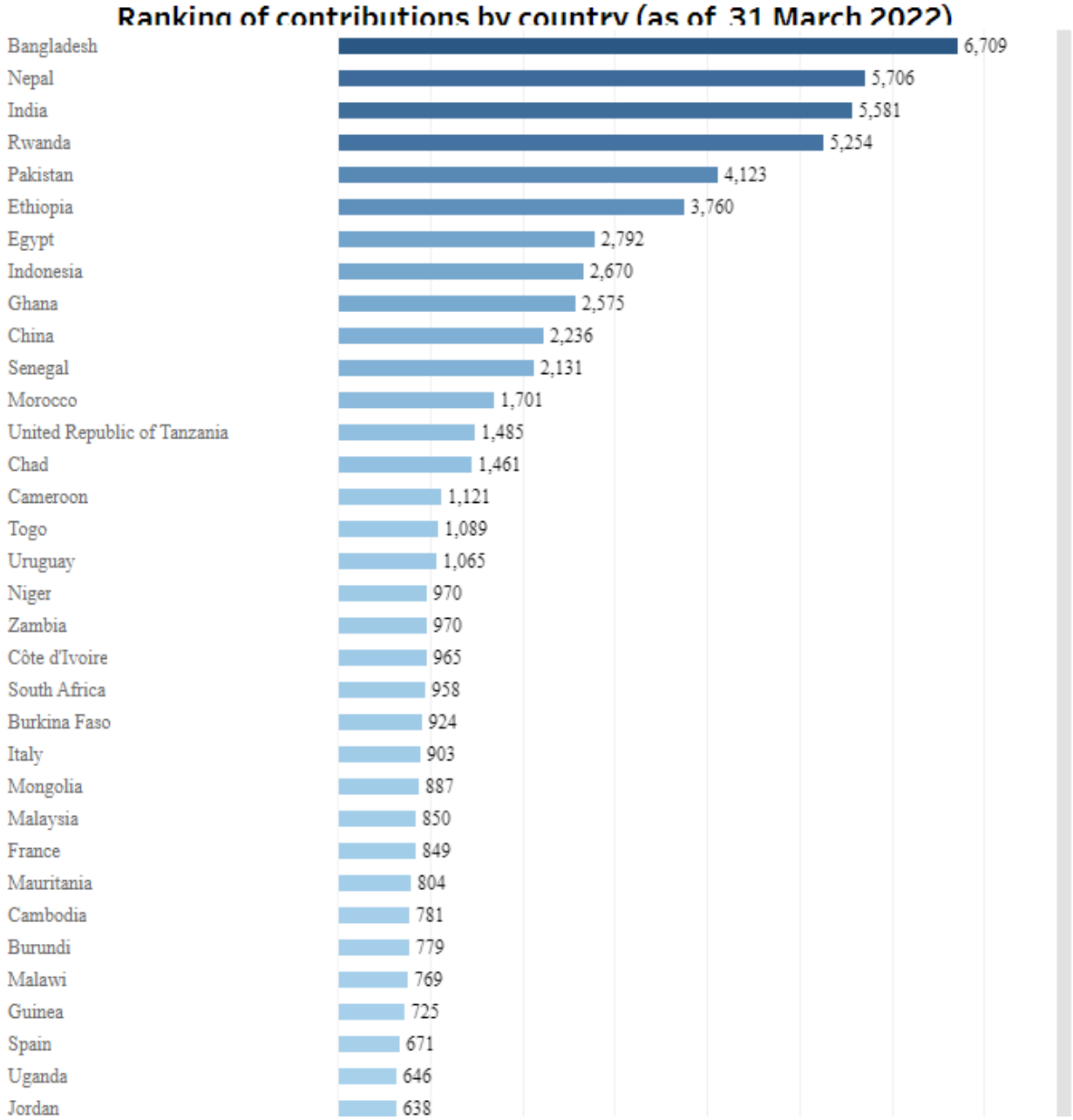
UNMIK, Kosovo

UNMISS, South Sudan

UNMOGIP, India and Pakistan

UNTSO, Middle East





Who Are the Peacekeepers

https://peacekeeping.un.org/en/troop-and-police-contributors

UN General Assembly



➔General Assembly (GA) is the parliamentary body of the United Nations and consists of representatives of all UN member states (currently 193 states)

➔Seen as the most ‘democratic’ international organ but minimal role in enforcement

➔One state, one vote (Art. 18 UN Charter)

UN General Assembly

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Subsidiary responsibility for the maintenance of international peace and security

Art. 11 (2)

The General Assembly may discuss any questions relating to the maintenance of international peace and security brought before it … except as provided in Article 12, may make recommendations with regard to any such questions to the state or states concerned or to the Security Council or to both. Any such question on which action is necessary shall be referred to the Security Council by the General Assembly either before or after discussion.

Art. 14, UN Charter

"Subject to the provisions of Article 12, the General Assembly may recommend measures for the peaceful adjustment of any situation, regardless of origin, which it deems likely to impair the general welfare or friendly relations among nations, including situations resulting from a violation of the provisions of the present Charter setting forth the Purposes and Principles of the United Nations"

See also: Certain Expenses of the United Nations, Advisory Opinion, ICJ (1962)

UN General Assembly

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Subsidiary responsibility for the maintenance of international peace and security

Art. 12 (1) UN Charter

While the Security Council is exercising in respect of any dispute or situation the functions assigned to it in the present Charter, the General Assembly shall not make any recommendation with regard to that dispute or situation unless the Security Council so requests.

See Wall Advisory Opinion, ICJ (2004), paras. 27-28.

UN General Assembly

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Can the GA recommend non-forcible and forcible measures

➔The Cold War increased the scope of the GA in enforcement in the context of a deadlocked Security Council ('Uniting for Peace')

➔Uniting for Peace procedure confirmed by the ICJ in ***Certain Expenses Case (advisory Opinion) 1949***.

UN GA Resolution 377 (V) (1950) – Uniting for Peace:

'…if the Security Council, because of lack of unanimity of the permanent members, fails to exercise its primary responsibility for the maintenance of international peace and security in any case where there appears to be a threat to the peace, breach of the peace, or act of aggression, the General Assembly shall consider the matter immediately with a view to making appropriate recommendations to Members for collective measures.'

SECURITY COUNCIL REPORT
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Security Council Deadlocks and Uniting for Peace: An Abridged History

Uniting for Peace has been implemented 11 or 12 times since the adoption of General Assembly resolution 377 (V) on 3 November 1950, depending on how one characterises the first case (*see case 1 below*). The Security Council has referred a majority of the cases, but has not done so since 1982 (*see cases 2-8 to the right*), while the General Assembly has done so most recently albeit not since 1997 (*see cases 9-12 to the right*).

The first request from the General Assembly interestingly came from a permanent member of the Security Council, the USSR (*see case 9*), and all General Assembly requests have dealt with situations that place one or more of the P3 (France, United Kingdom, United States) on the spot. All the Security Council requests save two (*see cases 2 and 8*), on the other hand, were in response to vetoes by the USSR.

Resolution 377 (V) (1950) aka Uniting for Peace (3 November 1950)

"If the Security Council, because of lack of unanimity of the permanent members, fails to exercise its primary responsibility for the maintenance of international peace and security in any case where there appears to be a threat to the peace, breach of the peace, or act of aggression, the General Assembly shall consider the matter immediately with a view to making appropriate recommendations to Members for collective measures, including in the case of a breach of the peace or act of aggression the use of armed force when necessary, to maintain or restore international peace and security. If not in session at the time, the General Assembly shall therefore meet in emergency special session within twenty-four hours of the request. Such emergency special session may be called if requested by the Security Council on the vote of any seven members [*nine since 1965*], or by a majority of the Members of the United Nations."

Case 1
Korea (1951)

Following three vetoes by the USSR on the situation in Korea [S/1653 (6 September 1950), S/1752 (12 September 1950), S/1894 (30 November 1950)], six Security Council members requested the General Assembly to consider the situation [A/1618 (4 December 1950)]. Although the Security Council removed the item from its agenda– a procedural issue not subject to the veto– enabling the General Assembly to freely discuss the matter under Article 11 of the United Nations Charter, in resolution 498 (V) [1 February 1951] the General Assembly nonetheless employed language from Uniting for Peace: *"noting that the Security Council, because of lack of unanimity of the permanent members, has failed to exercise its primary responsibility for the maintenance of international peace and security with regard to Chinese communist intervention in Korea […]."* Moreover, this is the case most frequently associated with Uniting for Peace as resolution 377 (V) was adopted in response to the 6 and 12 September 1950 vetoes by the USSR referenced above.

Uniting for Peace invoked by the Security Council

Situation	Security Council Stalemate	Security Council Request	General Assembly Outcome
Case 2 Middle East (1956)	S/3710, S/3713/Rev.1 [FR and UK vetoed]	Resolution 119 (1956) [FR and UK voted against]	First Emergency Special Session on "The Situation in the Middle East" (Suez Canal) adopted seven resolutions, including Resolution 1000 (ES-I) mandating the UN Emergency Force (UNEF).
Case 3 Hungary (1956)	S/3730/Rev.1 [USSR vetoed]	Resolution 120 (1956) [USSR voted against]	Second Emergency Special Session on "The Situation in Hungary" adopted five resolutions, including Resolution 1004 (ES-II) mandating a commission of inquiry into foreign intervention in Hungary.
Case 4 Middle East (1958)	S/4050/Rev.1, S/4055/ Rev.1 [USSR vetoed]	Resolution 129 (1958)	Third Emergency Special Session on "The Situation in the Middle East" adopted Resolution 1237 (ES-III) calling for early withdrawal of foreign troops from Jordan and Lebanon.
Case 5 Congo (1960)	S/4523 [USSR vetoed]	Resolution 157 (1960) [USSR voted against, France abstained]	Fourth Emergency Special Session on "The Situation in the Congo" adopted Resolution 1474 (ES-IV) confirming the mandate of the UN Operation in the Congo (ONUC).
Case 6 Bangladesh (1971)	S/10416, S/10423 [USSR vetoed]	Resolution 303 (1971) [FR, UK and USSR abstained]	As the Twenty-Sixth Regular Session was in session no Emergency Special Session was necessary and the issue was dealt with under the agenda item "UN Assistance to East Pakistan Refugees".
Case 7 Afghanistan (1980)	S/13729 [USSR vetoed]	Resolution 462 (1980) [USSR voted against]	Sixth Emergency Special Session on "The Situation in Afghanistan" adopted Resolution ES-6/2 calling for the immediate, unconditional and total withdrawal of foreign troops from Afghanistan.
Case 8 Middle East (1982)	S/14832 [US vetoed]	Resolution 500 (1982) [UK and US abstained]	Ninth Emergency Special Session on "The Situation in the Middle East" adopted Resolution ES-9/1 declaring Israel a non peace-loving state and calling on members to apply a number of measures on Israel.

Uniting for Peace invoked by the General Assembly

Situation	Security Council Stalemate	General Assembly Request	General Assembly Outcome
Case 9 Middle East (1967)	N.A. [USSR draft resolution failed to get nine votes]	USSR (A/6717) and General Assembly vote (98-3-3)	Fifth Emergency Special Session on "The Situation in the Middle East" adopted six resolutions, including Resolutions 2253 and 2254 (ES-V) calling on Israel to rescind unilateral measures in Jerusalem.
Case 10 Palestine (1980)	S/13911 [US vetoed]	Senegal (A/ES-7/1)	Seventh Emergency Special Session on "The Question of Palestine" adopted eight resolutions (ES-7/2 through ES-7/9) calling for the unconditional and total withdrawal of Israel from territories occupied since 1967.
Case 11 Namibia (1981)	S/14459, S/14460/Rev.1, S/14461, S/14462 [FR, UK and US vetoed]	Zimbabwe (A/ES-8/1)	Eighth Emergency Special Session on "The Question of Namibia" adopted Resolution ES-8/2 condemning South Africa for occupation and calling for assistance to liberation struggle.
Case 12 Palestine (1997)	S/1997/199, S/1997/241 [US vetoed]	Qatar (A/ES/10/1)	Tenth Emergency Special Session on "The Question of Palestine", still in session, adopted inter alia, Resolution ES-10/14 requesting an advisory opinion from the International Court of Justice.

For more: https://research.un.org/en/docs/ga/quick/emergency

UN Secretariat & the Secretary General

- ✓ Constitutes an international civil service, led by the UN Secretary General (UNSG)
- ✓ UNSG appointed by the General Assembly for five-year term
- ✓ UNSG can bring to the attention of Security Council any matter which in their opinion may threaten international peace and security (Art. 99)
- ✓ 'Good office' functions in mediating in and resolving international crises or conflicts has expanded over the years (including through the appointment of Special Representatives of the UNSG)



Current UN Secretary-General Antonio Guterres

Main takeaway points

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➔The UN system constrains the use of force among its member states through a system of collective security

➔This UN system centralises the permissible use of force to one body: the Security Council

➔When there is a threat to peace, breach of peace, or act of aggression, it is for the UN Security Council to take decisions to maintain or restore international peace and security

➔UNSC can employ a range of coercive measures under Chapter VII to enforce its decisions, both non-military and military (range of non-military measures has expanded over time, incl. sanctions)

- In the absence of a standing UN army, UN Security Council may decide on (1) UN-run peeacekeeping or peace operation; or (2) authorise the use of force

- However, UNSC has not been able to act in all instances of threats to and breach of international peace and security (e.g., because of a lack of capacity, but also veto power of P-5)

Week 10

Part C

THE FUTURE OF COLLECTIVE SECURITY (SECURITY COUNCIL REPORT PODCAST)
LINK ON ILEARN PAGE

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UN Photo: New Agreement Between Egypt and Israel: New Tasks Assigned to UNEF



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